

APPLICATION BY THE POLISH GOVERNMENT TO INTERVENE.

The Hague, May 22nd, 1923.

To the Permanent Court of International Justice.

Having regard to Article 62 of the Statute of the Court and articles 58-59 of the Rules of the Court ;

Whereas the Governments of His Britannic Majesty, of the French Republic, of His Majesty the King of Italy and of His Majesty the Emperor of Japan, have instituted proceedings before the Court by means of a letter from the French Legation at The Hague dated January 16th, 1923, with regard to the refusal of the German authorities on March 21st, 1921 to allow the British S.S. "Wimbledon", chartered by the French company "Les Affréteurs réunis", free access to the Kiel Canal ;

Whereas the said S.S. "Wimbledon" was bound for Danzig with a cargo of 4000 tons of goods (military material) destined for the Polish Government; whereas the German Government justifies its refusal to allow passage to the S.S. "Wimbledon" on the grounds that, the Treaty of Peace between Poland and Russia not having then been ratified, a state of war existed between Poland and Russia and that the German regulations with regard to neutrality prohibited the transit of war material through German territory to these two countries ;

Whereas Poland was one of the parties to the Treaty of Peace of Versailles and whereas the refusal in question constitutes a violation of the rights and material advantages guaranteed to Poland by Article 380 of the Treaty of Versailles ;

The undersigned being duly authorised by the Government of the Polish Republic, presents to the Court, in agreement with the Governments of Great Britain, France

Italy and Japan, the request of the Polish Government to intervene on the side of these other States in the case of the "Wimbledon" above referred to.

(Signed) JOSEPH DE WIERUSZ-KOWALSKI.

Minister.